***Ex Tempore***

REINFORCED STEEL CONTRACTORS ZIMBABWE (PRIVATE) LIMITED
versus
FBC BANK LIMITED
and
THE SHERIFF OF ZIMBABWE

HIGH COURT OF ZIMBABWE
**DEME J**
HARARE, 28 and 29 July 2026

**Opposed application**

*T Mpofu,* for the Applicant
*T Magwaliba,* for the 1st Respondent
No appearance for the 2nd Respondent.

**DEME J**: The Applicant approached this court seeking the relief for mandatory interdict. It seeks to compel the first Respondent to produce certain documents. More particularly, the Applicant is seeking the following relief:

> "1. The application for a mandatory interdict be and is hereby granted.
> 2. The first Respondent be and is hereby directed to make full and unredacted disclosure to the Applicant, within seven (7) days of receipt of this order, of the following documents and information:
> 2.1 All correspondence exchanged between the first Respondent and the Reserve Bank of Zimbabwe (RBZ) relating to the Applicant's foreign currency allocations referenced FX29, FX30, FX31, FX33, and FX34;
> 2.2. Any written confirmation, communication, or correspondence from the RBZ to the first Respondent explicitly confirming that the United States Dollar amounts corresponding to the allocations FX29, FX30, FX31, FX33, and FX34 were not transferred to the first Respondent.

> 2.3. All internal memoranda, reports, or electronic correspondence (including emails) generated by the first Respondent concerning the non-receipt of funds from the RBZ and the subsequent decision to offer Treasury Bills to the Applicant in lieu thereof.
> 3. The first Respondent to pay the costs of suit."

In brief, the Applicant, sometime in November and December 2023, through the first Respondent, participated at Foreign Exchange Auction System conducted by the Reserve Bank of Zimbabwe. The Applicant was advised by the first Respondent to submit its bid by every Monday in preparation for the Applicant's participation at the auction system. The Applicant was also informed by the first Respondent to deposit, in its account, sufficient local currency that is equivalent to the amount of foreign currency sought by the Applicant.

It is common cause that on 5 occasions, the Applicant was advised by the first Respondent that it had been allocated the foreign currency. It is further common cause that the bank account for the Applicant was not subsequently debited by the foreign currency allocated.

The Applicant was notified by the first Respondent, sometime in August 2024, that the Reserve Bank of Zimbabwe was issuing treasury bills in respect of clients who did not receive foreign currency allocated. The Applicant declined to exercise this option.

The Applicant approached the first Respondent seeking to be supplied with the relevant documents related to the rejection of its bids for foreign currency. The first Respondent refused to furnish the Applicant with such information on the basis of confidentiality.

The Applicant approached this court seeking to compel the first Respondent to disclose all relevant documentation pertaining to all the transactions where it participated at the auction system. According to the Applicant, this will enable it to know whether all its bids for the foreign currency were not successful.

The application was opposed by the first Respondent on the basis that the information requested is confidential. The first Respondent insisted that the information sought is accompanied by the information of third parties who have not consented to the release of their information.

The first Respondent also averred that the transaction between the Applicant and the first Respondent can only be complete after the receiving of foreign currency from the Reserve Bank of Zimbabwe. It further maintained that the allocation of foreign currency to the clients was

conditional upon the release of actual foreign currency. According to the first Respondent, the release of foreign currency was the sole responsibility of the Reserve Bank of Zimbabwe.

The first Respondent affirmed that the issuance of the treasury bills by the Reserve Bank of Zimbabwe is a clear signal that the Reserve Bank of Zimbabwe failed to honour certain transactions where foreign currency was allocated. The first Respondent affirmed that the Applicant has the alternative remedy of accepting treasury bills issued by the Reserve Bank of Zimbabwe.

What remains to be determined is whether the present application ought to be granted as prayed for.

Our courts have established the basic requirements for the present application. The Applicant for mandatory interdict must establish the following:

(a) A clear right.

(b) An injury actually suffered or reasonably apprehended.

(c) The absence of similar remedy.

Reference is made to the cases of *Tribac (Pvt) Ltd v Tobacco Marketing Board*[1], *Lipschitz* v *Wattrus N.O*[2] and *Kaputuaza and Anor* v *Executive Committee of Administration of Hereros and Ors*[3].

Adv *Mpofu* argued that the Applicant has established a clear right. He further submitted that the Applicant is entitled to the information requested as it participated at the auction system. Motivating the case for the Applicant's entitlement to the information demanded, reference was made to ss 17, 28A(2)(g) and 76(3)(a) of the Banking Act [*Chapter 24:20*] (hereinafter called "the Banking Act"). With respect to the injury, the Applicant averred that the Applicant is prejudiced by the first Respondent's refusal to furnish the relevant documentation. On the question of alternative remedy, Adv *Mpofu* argued that the acceptance of treasury bills is not an effective remedy available.

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[1] 1996 (2) ZLR 52 (S).

[2] 1980 (1) SA 662 (T).

[3] 1984 (4) SA 295 (SWA).

Adv *Magwaliba* submitted that the Applicant failed to establish a clear right. He further contended that the Applicant failed to tender any document evincing a contractual relationship between the first Respondent and the Applicant. Adv *Magwaliba* additionally submitted that in terms of s 76(3)(a) of the Banking Act, the Applicant cannot release the information without the order of the court. He also contended that the Applicant has the alternative remedy of approaching the Reserve Bank of Zimbabwe.

Section 76 of the Banking Act provides that:

> "(1) None of the following persons, namely—
> (a) the Registrar or any officer referred to in section four;
> (b) any officer or employee of the Reserve Bank;
> (c) any supervisor or inspector;
> (d) any curator;
> (e) any auditor of a banking institution;
> (f) any employee or agent of a person specified in paragraph (a), (b), (c), (d) or (e); shall disclose any information which he has acquired in the performance of his functions under this Act and which relates to the affairs of a banking institution.
> (2) Except with the permission of the Reserve Bank, no banking institution or employee or agent of a banking institution shall disclose any information provided to it by the Reserve Bank in the performance of its functions under this Act.
> (3) Subsections (1) and (2) shall not apply to—
> (a) any disclosure made by the person concerned in the performance of his functions under this Act or when required to do so by a court or in terms of any other enactment; or
> (b) the supplying of statistics in terms of section sixty-four; or
> (c) the disclosure of any information that is generally known to members of the public or a substantial section of the public; or
> (d) a disclosure of such information in such circumstances as may be prescribed.
> (4) Any person who contravenes subsection (1) or (2) shall be guilty of an offence and liable to a fine not exceeding level six or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment."

Applicant's counsel relied on s 76(3)(a) of the Banking Act to motivate the present application. Clearly the information, in terms of this provision, may only be released upon two conditions. The first condition is that there must be an order of the court. It is clear that there is no order of the court sought to be enforced through the present application. On this basis, the application fails to meet the first exemption.

The second exemption established by s 76(3)(a) of the Banking Act is that there must be an Act of Parliament authorizing the disclosure of such information. No Act of parliament has been relied upon by the counsel for the Applicant. In para 27 of the founding affidavit, the Applicant averred that the application is grounded on common law. However, in para 27, the Applicant referred the court to s 62(2) of the Constitution which provides that:

> "Every person, including the Zimbabwe media has the right of access to any information held by any person, including the State, insofar as the information is required for the exercise or protection of a right."

It is apparent that s 62(4) of the Constitution allows the limitation of access through an Act of Parliament. It provides that:

> "Legislation must be enacted to give effect to this right, but may restrict access to information in the interest of defence, public security or professional confidentiality, to the extent that the restriction is fair, reasonable, necessary and justifiable in a democratic society based on openness, justice, human dignity, equality and freedom."

In the absence of any further submission by Applicant's counsel on whether there is an Act of Parliament which authorizes the disclosure of the information requested, I am of the opinion that s 76(3)(a) is inapplicable to the Applicant's case. I have not been favoured with a submission that there is an Act of Parliament which was enacted pursuant to the provisions of s 62(4) of the Constitution.

It is palpably clear that the right of access to information is not absolute. Such right can be curtailed by a piece of legislation according to s 62(4) of the Constitution. Section 76 of the Banking Act is one such piece of legislation that may restrict the right of access to information in the manner contemplated by the Constitution. Section 76 of the Banking Act has not been declared by any competent court to be unconstitutional. It remains part of the statute book and ought to be observed.

The Applicant also referred the court to s 28A(2)(g) of the Banking Act which provides that:

> "The procedures of corporate governance referred to in subs (1) shall be directed towards achieving the strategic and business objectives of the banking institution or controlling company concerned efficiently, effectively, ethically and equitably, within acceptable risk parameters, so as to ensure—
> (a)…….
> (b)…….
> (c)…….
> (d)……
> (e)……...
> (f)……
> (g) the timely, accurate and meaningful disclosure of matters that are material to the business of the banking institution or controlling company or the interest of its shareholders and other interested persons;".

It is apparent that s 28A(2)(g) of the Banking Act cannot override the provisions of s 76(2) of the Banking Act which provides that:

> "(2) Except with the permission of the Reserve Bank, no banking institution or employee or agent of a banking institution shall disclose any information provided to it by the Reserve Bank in the performance of its functions under this Act."

Clearly, the first Respondent, being a banking institution, was performing the functions of the Reserve Bank of Zimbabwe by distributing or selling foreign currency to successful bidders of foreign currency. The information sought by the Applicant was provided to the first Respondent by the Reserve Bank of Zimbabwe. Thus, such information falls within the province of the information contemplated by s 76(2) of the Banking Act. The first Respondent cannot disclose such information without the authority of the Reserve Bank of Zimbabwe. Disclosing such information without the authority of the Reserve Bank of Zimbabwe is an offence in terms of s 76(4) of the Banking Act. On this basis, the first Respondent acted lawfully by refusing to supply such information to the Applicant.

The Applicant's attention was brought to s 76(2) of the Banking Act through first Respondent's heads of argument and ignored this. Compelling the first Respondent to release the information requested will violate the provisions of s 76(2) of the Banking Act. The Applicant ought to have approached the Reserve Bank of Zimbabwe in terms of the appropriate law. Adv *Mpofu* argued that the Applicant is not seeking any remedy against the Reserve Bank of Zimbabwe. He further submitted that the Applicant does not have any problem with the Reserve

Bank of Zimbabwe. However, this court finds it impossible to grant the present application without the consent of the Reserve Bank of Zimbabwe.

Further, Adv *Mpofu*, in motivating the case for the Applicant, referred the court to s 17 of the Banking Act which provides that:

> "Subject to this Act, every banking institution shall conduct its banking business and other operations in accordance with sound administrative and accounting practices and procedures, adhering to proper risk management policies, and shall comply with the terms and conditions of its registration and with any directions given to it by the Reserve Bank or the Registrar in terms of this Act."

This provision, in my view, does not take Applicant's case any further. It does not create the right of access to information. On this basis, I am of the view that the present application is baseless. It lacks foundation. It ignores statutory limits imposed by the legislature. The Applicant's alleged clear right is restricted by legislation. Such right must be enjoyed within the confines of the enabling legislation. The Applicant has the alternative remedy of approaching the Reserve Bank of Zimbabwe with its request as correctly submitted by Adv *Magwaliba*. The application must be dismissed with costs in the circumstances. It is resultantly ordered as follows:

The application be and is hereby dismissed with costs.

**DEME J …….....**

*Dhaka Lightfoot & Stone Attorneys,* Applicant's Legal Practitioners
*Dube Manikai and Hwacha,* First Respondent Legal Practitioners